



Maritime &
Coastguard
Agency

Guidance

MGN 123 (M+F) Amendment 2

Certificates of discharge

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Summary

This notice outlines the requirements for seafarers and fishermen to be given a written record of their work, titled as a certificate of discharge.

Amendment 2 updates section 1.1 only.

1. Introduction

1.1 Certificates of discharge have not been issued by the MCA since 1999. The certificate of discharge must be completed by the shipowner and given to the seafarer at the end of their period of service.

1.2 Example templates of certificates of discharge are available at annex 1 and 2.

1.3 The issue of discharge books has separate requirements to certificates of discharge, with full information available within MGN 685 (M+F) Issue of Discharge Books (<https://www.gov.uk/government/publications/mgn-685-mf-issue-of-discharge-books-to-seafarers>) and completion of form MSF 4509 (<https://www.gov.uk/government/publications/application-for-a-discharge-book-and-or-british-seamans-card-msf-4509>).

2. Regulations

2.1 Merchant Shipping (Crew Agreements, Lists of Crew and Discharge of Seamen) Regulations 1991

(<https://www.legislation.gov.uk/uksi/1991/2144/contents/made>) regulation 25(1)(a)(i), provides that where a seafarer employed under a crew agreement is discharged, the master or one of the ship's officers authorised by the master shall, before the seafarer is discharge, record in the seafarer's discharge book the name of the ship; its port of registry; gross or registered tonnage; official number; description of the voyage; the capacity

in which the seafarer was employed; the date on which the seafarer commenced employment, and the date and place of discharge.

2.2 Regulation 25(1)(a)(ii) outlines that if the seafarer does not produce their discharge book, they shall be given a certificate of discharge containing the same information entered in the discharge book.

2.3 Similarly, regulation 24(3) of the Merchant Shipping (Crew Agreements, Lists of Crew and Discharge of Seamen) (Fishing Vessels) Regulations 1972 (<https://www.legislation.gov.uk/ukSI/1972/919/made>) provides that if a seafarer employed on a fishing vessel of more than 55 feet (16.764 metres) in length so requests, the employer or the master shall give to them, either on discharge or at the time wages are paid, a certificate of discharge containing the following details:- the name of the seafarer; name of the fishing vessel; port of registry; official number; length; type and horsepower of main engine; date on which the seafarer commenced employment and the date on which they were discharged.

3. Certificate of Discharge

3.1 As a guide to owners two template certificates have been provided in Annex 1, for seafarers employed on merchant ships and Annex 2 for seafarers employed on fishing vessels.

3.2 The templates contain all the information required for merchant seafarers and fishermen. Owners must adhere closely to the layouts shown in Annex 1 or 2, as appropriate, and that there is no substantive change in the content.

3.3 No information relating to ability or conduct is to be incorporated in the certificate.

3.4 These specimen certificates are, however, not to be considered as “forms prepared or approved by the MCA” for the purposes of section 300 of the Merchant Shipping Act 1995.

More information

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